

Google, Meta, Microsoft systems fail to honor opt-out signals, audit says

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By [Maria Dinzeo](#)

Major ad tech providers are continuing to track consumers who have opted out via Global Privacy Control, according to an audit that found widespread failures to block advertising cookies across thousands of popular websites.

Digital advertising giants Google, Microsoft and Meta are largely ignoring consumer requests to opt out of tracking, according to an independent audit that found more than 124,000 advertising cookies were set despite users having enabled Global Privacy Control.

The findings come from webXray, a privacy analytics platform founded by Timothy Libert, a former Google engineer who oversaw its cookie policy and compliance.

WebXray scanned 7,587 websites popular in California, testing each with and without Global Privacy Control enabled to measure whether advertising cookies were blocked. Google had the highest failure rate at 87 percent, meaning the company failed to honor users' opt-out choices in nearly 9 out of 10 cases, followed by Meta at 69 percent and Microsoft at 50 percent.

The audit says that both Google and Microsoft respond to GPC opt-out signals by setting an advertising cookie on the user's browser. In Google's case, its cross-site advertising tracking cookie follows the user for two years across Google's ad network, and Microsoft's user identifier cookie tracks users for one year, according to webXray's examination of the code (see here 1726124).

The audit says the failures extended across Google's ad network, Google marketing platform, and YouTube. Microsoft also ignored opt-outs across its family of products, with cookies set on Microsoft Advertising, its Clarity analytics tool, and LinkedIn.

The audit also found that so-called "cookie banners," or the pop-up notices that websites use to obtain user consent, are failing to prevent Google from setting cookies after users opt out. Three Google-certified consent management platforms, which are supposed to enforce user privacy choices, had respective opt-out failure rates of 77 percent, 90 percent, and 91 percent.

According to the audit, one provider identified only as "one of the most trusted names in privacy tooling" failed to prevent 23,450 advertising cookies from being set despite users having opted out of tracking.

WebXray calculated that the companies face \$5.8 billion in potential liability exposure.

Google disputed webXray's audit, saying through a spokesperson that it is "based on a fundamental misunderstanding of how our products work" and that "we honor opt-outs provided by advertisers and publishers as required by law."

According to Google, the Global Privacy Control is not the mechanism through which publishers and advertisers communicate user opt-out preferences to the company. That is done through Google's Restrictive Data Processing signal or the IAB's Global Privacy Platform signals, which Google says it clearly communicates to advertisers and publishers.

Microsoft also pushed back. "Consumer privacy is a top priority for us, and we remain committed to transparency and compliance with applicable privacy requirements," a Microsoft spokesperson said in an email to MLex. "As outlined in our privacy statement, when we receive a GPC signal, we opt the user out of sharing personal data with third parties for personalized advertising, and our advertising systems are designed to reflect that choice. Certain Microsoft cookies are necessary for operational purposes, and may therefore be placed and read even when a GPC signal is detected."

According to the audit, Meta operated a bit differently as the tracking pixel it instructs publishers to install on websites contains no opt-out check at all. "The code contains no check for opt-out signals — it loads unconditionally, fires a tracking event, and sets a cookie regardless of the consumer's privacy preferences," the audit says.

In emailed statement, Meta called the audit a "marketing ploy that mischaracterizes how GPC works and Meta's role."

A spokesperson said GPC only restricts certain uses of third-party data and allows website operators to override GPC signals, and pointed to its Limited Data Use feature, which allows publishers to signal to Meta that a user has opted out. "When data is transmitted to us with the LDU flag, we restrict the use of that data," the spokesperson said, referring to an explainer on its website about how it processes personal data under US state privacy laws, including the California Consumer Privacy Act.

WebXray's founder has seen these compliance debates up close as he spent two years as a staff privacy engineer at Google, where he helped run its compliance and governance efforts. Libert drafted Google's internal cookie policy, audited each Google-owned cookie to determine whether they complied with the policy and led what he himself described as the biggest cookie cleanup Google has done in nearly a decade.

Libert also worked closely with in-house counsel when dealing with governmental investigations into cookies, and worked to develop technical solutions to the concerns privacy regulators raised.

He resigned in 2023. "I was literally told your job was to protect the company, so I parted ways a couple weeks after that," he told MLex.

Libert was also listed as an expert witness in an ongoing class action alleging that Google's advertising trackers unlawfully intercept consumers' private health information from healthcare provider websites. But Google sought to disqualify him as an expert, arguing in a declaration filed by Kristie Chon Flynn, Google's data protection officer, that Libert had acquired confidential knowledge of Google's cookie compliance strategies that should not be disclosed in litigation. Libert eventually dropped out of the case voluntarily as Google's efforts to boot him from the witness list became too stressful.

Having left Google, Libert focused his energy on webXray, a forensic privacy analysis tool that scans websites and inventories every cookie, tracking pixel, and other tracking technology present and matching findings against a proprietary database of more than 2,000 data recipients that Libert has been building for 16 years, classifying each by purpose — including advertising, analytics and consent management.

Libert said he had been aware for years that Google-certified cookie banners do not block Google's cookies, and had shown the problem to regulators repeatedly without follow-up. "I've told so many people about this for years," he told MLex. "It was one of those things where if no one else was going to do it, I'm going to do it. I wanted to put this out in the open."

He told MLex that the companies have the ability to honor opt-out signals if they so choose, an observation noted repeatedly throughout the audit. "They could fix this in a week," Libert said.

The audit comes as state privacy regulators are stepping up their scrutiny of whether websites are actually honoring consumer opt-out requests (see [here](#)). In September, the attorneys general of California, Colorado and Connecticut launched a joint investigative sweep targeting GPC non-compliance, sending letters to businesses demanding that they immediately start honoring opt-out requests (see [here](#)).

Opt-out compliance has become a focal point of enforcement under California's privacy law, with regulators shifting their focus from whether companies have cookie banners and privacy links on their websites to actually testing whether those tools work.

Last year, California also enacted a law requiring browsers, including Google's Chrome, to offer users a built-in opt-out signal starting Jan. 1, 2027 (see [here](#)).

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